

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1239

Introduced by DeKay, 40.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to public health and welfare; to amend section
- 2 71-2451.01, Reissue Revised Statutes of Nebraska; to change
- 3 provisions relating to management of long-term care facilities; and
- 4 to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 71-2451.01, Reissue Revised Statutes of Nebraska,
2 is amended to read:

3 71-2451.01 Unless otherwise allowed by state or federal law or
4 regulation, the management of a long-term care facility at which an
5 automated medication system is located shall not require a resident of
6 the facility to obtain medication through the automated medication system
7 and shall not restrict or impair the ability of a resident of the
8 facility to obtain a medication ~~medications~~ from the pharmacy of the
9 resident's choice.

10 **Sec. 2.** Original section 71-2451.01, Reissue Revised Statutes of
11 Nebraska, is repealed.